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July 24, 2017					
FEDERAL	MARITIME	COMMISSION			

FEDERAL MARITIME COMMISSION

DOCKET NO. 17-02

HANGZHOU QIANWANG DRESS CO., LTD.

v.

RDD FREIGHT INTERNATIONAL INC.

**ORDER TO FILE STATUS REPORTS
ORDER FOR COMPLAINANT TO SUPPLEMENT THE RECORD**

On April 28, 2017, I conducted a telephone conference with the person who signed the Verified Complaint commencing this proceeding and counsel for Respondent. Because the person who signed the Complaint is not an attorney or an officer, partner, or regular employee of Complainant, I issued an order requiring that on or before May 26, 2017, Complainant serve and file a new Verified Complaint signed by a person with knowledge of the facts alleged in the Complaint and designate an attorney or an officer, partner, or regular employee qualified to represent it in this proceeding. The Order also required the parties to contact the Commission's Office of Consumer Affairs and Dispute Resolution Services (CADRS). *Hangzhou Qianwang Dress Co., Ltd. v. RDD Freight International Inc.*, FMC No. 17-02 (ALJ Apr. 28, 2017) (Order to Supplement the Record).

Since that Order was issued, the Office of the Secretary has received Complainant's letter response to counterclaim signed by the General Manager of Complainant, Complainant's letter of proposed discovery timeline signed by the General Manager of Complainant, and Complainant's certificate of service, which is a photograph of a Federal Express mailing label. Complainant has not filed a new Verified Complaint signed by a person with knowledge of the facts alleged in the Complaint or a designation of an attorney or an officer, partner, or regular employee qualified to represent it in this proceeding.

It is my understanding that at least one of the parties has contacted CADRS. Accordingly, each party is ordered to file a status report on or before August 9, 2017, answering the following question:

At this time, are the parties engaged in active settlement discussions with CADRS?

The parties are ordered **NOT** to put information about settlement discussions in their status reports. This prohibition includes information about settlement positions, whether a party declines to enter into settlement discussions with CADRS, or any other information that relates to settlement.

Complainant has not yet complied with the order to file a new Complaint and to designate a representative. It is **FURTHER ORDERED** that on or before August 9, 2017, Complainant serve and file a new Verified Complaint signed by a person with knowledge of the facts alleged in the Complaint and designate an attorney or an officer, partner, or regular employee qualified to represent it in this proceeding as required by the April 28, 2017, Order. As stated in the April 28, 2017, Order, if Complainant does not take the required actions by August 9, 2017, the Complaint in this proceeding may be dismissed.



Clay G. Guthridge
Administrative Law Judge